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Constitution Day and Citizenship Day: Fact Sheet

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Contents

Introduction 1
Background 1
Legislation 2
Related CRS Products 2
Selected Congressional Statements and Remarks 3
Selected Presidential Proclamations and Remarks 3
Government Resources 4

Contacts

Author Information 4

Introduction

Constitution Day and Citizenship Day is a federal commemoration observed annually on September 17 by encouraging citizens to learn about their civic responsibilities and opportunities.

This fact sheet is designed to assist congressional offices with work related to Constitution Day and Citizenship Day. It provides authoritative information resources, including links to legislation, CRS reports, sample speeches and remarks from the *Congressional Record*, and presidential proclamations and remarks. It also links to additional government resources and selected advocacy, educational, and cultural organizations.

Background

On September 17, 1787, delegates to the Constitutional Convention in Philadelphia, PA, signed the U.S. Constitution, beginning a process of state-by-state ratification that lasted until 1790. The approval of nine states was needed to ratify the Constitution, and it was formally adopted on July 2, 1788, after the Confederation Congress learned that New Hampshire had ratified it.[1] Commemorations of the Constitution's signing date back to 1861, when residents of Philadelphia used the anniversary to publicly affirm their allegiance to the Union against the backdrop of the Civil War.[2] In 1887, President Grover Cleveland added presidential recognition to the commemoration by attending Philadelphia's centennial celebration of the Constitution's signing, referring to the "glorious promise of the Constitution through centuries to come" and remarking that "every American citizen should on this centennial day rejoice in his citizenship."[3]

A late 1930s campaign advocated by William Randolph Hearst to honor new citizens of the United States led to public celebrations of U.S. citizenship in some cities across the country.[4] In Los Angeles, this celebration took the form of an event to advocate for a federal law establishing "I Am an American Day."[5]

On May 3, 1940, President Franklin Roosevelt signed a joint resolution making the third Sunday in May "I Am an American Citizenship Day."[6] In his accompanying proclamation, Roosevelt described the purpose of the day to be so "the sovereign citizens of our Nation be prepared for the responsibilities and impressed with the significance of their status in our self-governing Republic."[7]

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[1] National Archives and Records Administration, "Constitution of the United States—A History," https://www.archives.gov/founding-docs/more-perfect-union.

[2] Jane M. Hatch, ed., *The American Book of Days* 3rd ed. (H. W. Wilson Company, 1978), pp. 850-851, https://archive.org/embed/americanbookofda00hatc.

[3] U.S. President (Cleveland), "Remarks at the Commercial Exchange, Philadelphia, During the Centennial Celebration of the Adoption of the Constitution, September 16, 1887," in *The Public Papers of Grover Cleveland, 22nd President of U.S., Mar. 4, 1885 to Mar. 4, 1889* (1889), p. 262, https://congressional.proquest.com/congressional/docview/t66.d71.pr2202-2?accountid=12084.

[4] John Whitmer, "Observing Constitution Day," *Social Studies Review*, vol. 46, no. 2 (Spring 2007), pp. 77-79, https://www.proquest.com/scholarly-journals/observing-constitution-day/docview/199542865/se-2.

[5] Olivia B. Waxman, "Citizenship Day used to be called 'I Am an American Day.' Here's how it came to be—and why it changed," *Time Magazine*, September 17, 2019, https://time.com/5677862/citizenship-day-history/.

[6] U.S. Congress, Senate Judiciary Committee, Subcommittee on S.J.Res. 233 and H.J.Res. 437, *Citizenship Day*, hearing on S.J.Res. 233 and H.J.Res. 437, 76th Cong., 3rd sess., March 25, 1940, https://congressional.proquest.com/congressional/docview/t29.d30.hrg-1940-sjs-0003?accountid=12084.

[7] U.S. President Franklin D. Roosevelt, Proclamation 2402, *"I Am an American Day" 1940*, May 3, 1940, accessed August 15, 2024, https://congressional.proquest.com/congressional/docview/t67.d72.1940-pr-2402?accountid=12084.

In 1952, I Am an American Citizenship Day was renamed to Citizenship Day, and the observance date was moved from May 3 to September 17 to coincide with the anniversary of the Constitution's signing.[8] In 1956, September 17-25 was designated as Constitution Week.[9]

In November 2004, Congress renamed the September 17 observance to "Constitution Day and Citizenship Day" and directed educational institutions that receive federal funding to hold related educational programs.[10]

Legislation

- H.J.Res. 437, 76th Congress (1940): "Authorizing the President of the United States of America to proclaim I Am an American Citizenship Day, for the recognition, observance, and commemoration of American citizenship."
- P.L. 82-261 (1952): "Designating September 17 of each year as 'Citizenship Day.'"
- P.L. 84-915 (1956): "Authorizing the President of the United States to designate the period beginning September 17 and ending September 23 of each year as Constitution Week."
- P.L. 108-447, Division J, Title I, §111, Stat. 3345 (2004): "Consolidated Appropriations Act, 2005." This act established the requirement that federal agencies and educational institutions receiving federal funds provide an educational program on the U.S. Constitution on September 17 and changed the name of the observance to Constitution Day and Citizenship Day.
- 70 *Federal Register* 29727 (May 24, 2005): "Notice of Implementation of Constitution Day and Citizenship Day on September 17 of Each Year." To implement the above provision of P.L. 108-447, the Department of Education issued this notice informing the qualifying institutions of this new educational requirement, along with lists of educational resources.
- 36 U.S.C. 106: Constitution Day and Citizenship Day.

Related CRS Products

- CRS Report R48065, *Congressional Recognition of Commemorative Days, Weeks, and Months: Background and Current Practice*, by Jacob R. Straus
- CRS Report R45020, *Primer on U.S. Immigration Policy*, by Holly Straut-Eppsteiner
- CRS Report R48021, *U.S. Citizenship and Immigration Services (USCIS): Operations and Issues for Congress*, by William A. Kandel
- CRS Report R43366, *U.S. Naturalization Policy*, by Holly Straut-Eppsteiner
- Congressional Research Service, *Constitution of the United States: Analysis and Interpretation*

[8] 36 U.S.C. §106; P.L. 82-261, 66 Stat. 9 (1952), accessed July 26, 2024, https://uscode.house.gov/statviewer.htm?volume=66&page=9.

[9] 36 U.S.C. §108; P.L. 84-915, 70 Stat. 932 (1956), accessed July 26, 2024, https://uscode.house.gov/statviewer.htm?volume=70&page=932.

[10] P.L. 108-447, Division J, Title I, §111, 118 Stat. 3344 (2004), https://www.govinfo.gov/content/pkg/PLAW-108publ447/pdf/PLAW-108publ447.pdf.

- *Our Constitution* podcast

Selected Congressional Statements and Remarks

Some Members of Congress make floor statements, give speeches, issue press releases, or enter extensions of remarks into the *Congressional Record* to recognize holidays and observances. The following are some examples that may be of assistance in preparing such statements:

- Representative John F. Kennedy, "Remarks of Representative John F. Kennedy at an 'I Am an American Day' Program, Mineola, New York," speech, May 18, 1947
- Representative Mike Pence, "Celebrating the 215th Anniversary of the Constitution," remarks in the House, September 17, 2002
- Senator Robert Byrd, "Celebrating the Constitution," remarks in the Senate in support of making Constitution Day a national holiday, September 20, 2004
- Senator Robert Byrd, "On the Importance of the U.S. Constitution," lecture, September 16, 2005
- Senator Orrin Hatch, "Constitution Day," remarks in the Senate, September 17, 2018
- Representative Greg Lopez, "Constitution Day," remarks in the House, September 18, 2024
- Representative Glenn Thompson, "Recognizing Constitution Day," remarks in the House, September 17, 2025

Selected Presidential Proclamations and Remarks

One of the many uses of a presidential proclamation or presidential remarks is to ceremoniously honor a group or call attention to certain issues or events. Some recent remarks and proclamations commemorating Constitution Day and Citizenship Day from the Compilation of Presidential Documents include the following:

- Presidential Documents—President Donald Trump (2025-)[11]
- Presidential Documents—President Joe Biden (2021-2025)
- Presidential Documents—President Donald Trump (2017-2021)[12]
- Presidential Documents—President Barack Obama (2009-2017)
- Presidential Documents—President George W. Bush (2001-2009)

Older proclamations and remarks of historical interest include the following:

- President Grover Cleveland, "Remarks at the Commercial Exchange, Philadelphia, During the Centennial Celebration of the Adoption of the Constitution," September 16, 1887
- President Franklin D. Roosevelt, "Greeting to New Citizens," May 6, 1940

[11] Link provides access to proclamations and remarks made by President Trump during both of his nonconsecutive terms where available.

[12] Link provides access to proclamations and remarks made by President Trump during both of his nonconsecutive terms where available.

- President Harry S. Truman, "Proclamation 2984—Citizenship Day, 1952"

Other remarks (including selected audio and video clips) are available through the American Presidency Project, established by the University of California, Santa Barbara.

Government Resources

- Library of Congress, Constitution Day Teacher Resources
- Library of Congress, Constitution of the United States: Primary Documents in American History
- National Archives and Records Administration, Educator Resources: Observing Constitution Day
- U.S. Citizenship and Immigration Services, Citizenship Resource Center
- U.S. Citizenship and Immigration Services, Immigration and Citizenship Data
- U.S. Department of Homeland Security, Yearbook of Immigration Statistics

Author Information

Kelly M. Hoffman
Senior Knowledge Management Librarian

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